

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTION 8.24.020 OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, CLARIFYING AND FURTHER REGULATING THE INSTALLATION OF ABOVE-GROUND TANKS AND CONTAINERS AS SPECIFIED."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 8.24.020, Aboveground Tanks in City Limits, of Chapter 8.24, Flammable and Combustible Liquids, of Title 8, Health and Safety, of the City of Cheyenne, Wyoming, is hereby amended to read:

8.24.020 Above-ground tanks and containers in city limits.

A. It is unlawful to have aboveground storage tanks exceeding sixty (60) gallons except in a heavy industrial (HI), light industrial (LI) or public (P) zone with the approval of, and under conditions established by, the chief of the Cheyenne fire department. Such tanks exceeding sixty (60) gallons. The following above-ground tanks and containers may only be installed in the city with the written approval of, and subject to the conditions established by, the fire code official:

1. Any above-ground tank with a capacity of more than sixty (60) gallons that stores or is intended to store any Class I or Class II liquid; and
2. Any above-ground containers with a capacity of sixty (60) gallons or less that stores or is intended to store any Class I or Class II liquid.

B. An above-ground tank located in any refinery complexes and complex or bulk plants plant shall be in compliance with the National Fire Protection Association Pamphlet No. NFPA 30, and the International Fire Code as adopted under section chapter 8.24, title 8, of the city code.

Section 2. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 3. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
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